



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35668063

Date: JAN. 16, 2025

Appeal of Texas Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, an entrepreneur in business development, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding that the record does not establish that the Petitioner is eligible for a national interest waiver as a matter of discretion. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act.

An advanced degree is any U.S. academic or professional degree or a foreign equivalent degree above that of a bachelor's degree. 8 C.F.R. § 204.5(K)(2). A U.S. bachelor's degree or foreign equivalent degree followed by five years of progressive experience in the specialty is the equivalent of a master's degree. *Id.*

If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement "in the national interest." Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S.

Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

Dhanasar, 26 I&N Dec. at 889.

II. ANALYSIS

The Petitioner's proposed endeavor is to open and operate a business development enterprise specializing in sustainable products. The Director determined that the Petitioner established his eligibility for the EB-2 classification as a member of the professions holding an advanced degree. However, the Director further concluded that the Petitioner did not establish eligibility for any of the three prongs of the *Dhanasar* framework, and therefore is not eligible for a national interest waiver as a matter of discretion. On appeal, the Petitioner contends that the Director erred in the determination that his proposed endeavor does not rise to the level of national importance. We disagree. Upon de novo review, we conclude the Petitioner's proposed endeavor does not rise to the level of national importance as set forth in the *Dhanasar* framework.

A. EB-2 Classification

The Petitioner is a business development director who states he has over 23 years of experience. He submitted a foreign diploma and transcripts accompanied by an academic evaluation which states that his degree is equivalent to a U.S. bachelor's degree in chemical engineering. In addition, the record contains letters evidencing at least five years of progressive experience in the specialty. The Director concluded that the Petitioner qualifies as a member of the professions holding an advanced degree and we agree.

B. National Interest Wavier

1. Substantial Merit

The first prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. The endeavor's merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* The Petitioner states that his proposed endeavor is to open and operate a business development enterprise specializing in sustainable agriculture. He asserts that his company will advance U.S. business and technology. The record includes information on the importance of marketing to the success of businesses and the important role immigrants play in entrepreneurship in the United States. We conclude that the proposed endeavor has substantial merit.

¹ See *Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Third, Ninth, Eleventh, and D.C. Circuit Courts of Appeals in concluding that USCIS' decision to grant or deny a national interest waiver is discretionary in nature).

2. National Importance

The Petitioner contends on appeal that the Director did not apply the proper standard of proof, instead imposing a stricter standard, and erroneously applying the law. He asserts the Director did not give “due regard” to the evidence submitted, specifically: the resume outlining his experience; the business plan describing his credentials, expertise, and accomplishments; evidence of his work in the field; letters of recommendation; and industry reports and articles demonstrating the national importance of the proposed endeavor and the shortage of professionals with his profile in the field. Upon de novo review, we conclude that the Director properly analyzed the evidence to evaluate the Petitioner's eligibility by a preponderance of evidence and the Petitioner did not demonstrate that his proposed endeavor satisfies the national importance element of *Dhanasar's* first prong, as discussed below. *Chawathe*, 25 I&N Dec. at 375-76.

While we acknowledge the Petitioner's experience in the field of the endeavor, his past experience does not establish national importance under the *Dhanasar* framework. The Petitioner begins the appeal brief's section entitled “The Proposed Endeavor's National Importance” by discussing his over 23 years of experience “covering various facets of business management and strategic planning” and stating that he is “exceptionally positioned to lead this venture.” In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Dhanasar*, 26 I&N Dec. at 889. While past experience can be persuasive for prong two analysis, whether the Petitioner is well-positioned to advance the proposed endeavor, it does not establish the national importance of the proposed endeavor as it does not speak to the prospective impact of the proposed endeavor.

The Petitioner asserts that his proposed endeavor is “poised to generate significant financial and employment benefits for the United States.” The record states, his company will result in total sales of \$305,100 in its first year of operation and \$718,930 in its fifth year of operation. In addition, the Petitioner states his proposed endeavor is projected to make substantial tax contributions which he states reflect his company's “commitment to supporting public finances and contributing to the country's overall economic health.” However, the record does not provide support for the stated financial projections. A petitioner must support assertions with relevant, probative, and credible evidence. *Chawathe*, 25 I&N Dec. at 376. Without further explanation of the basis for these projections, we cannot assess whether the stated estimates are credible, and therefore, we conclude that the Petitioner has not met his burden to establish that his proposed endeavor stands to have “substantial positive economic effects” that would be commensurate with national importance. *Dhanasar*, 26 I&N Dec. at 890.

Additionally, the Petitioner contends that his company will directly create 12 jobs (of which, 11 are part-time jobs) by the end of its fifth year of operation and 376 indirect jobs; stating that this, “significant job creation underscores [the company's] potential to . . . boost economic development, particularly in regions that may be economically depressed.” *Dhanasar* states that a proposed endeavor that has significant potential to employ U.S. workers or has other substantial positive economic effects particularly in an economically depressed area, for instance, may well be understood to have national importance.” *Id.* Here, the record does not establish his company's future staffing levels and business activity stand to provide substantial economic effects. Specifically, the record does not support that the direct creation of 12 additional jobs in this sector or the above stated sales or tax revenue generated by the company will have a substantial economic benefit commensurate with

the national importance element of the first prong of the *Dhanasar* framework. In addition, there is insufficient information about the 376 indirect jobs. For example, the record includes information about how this number was calculated using the Regional Input-Output Modeling System (RIMS II); but does not discuss how the Petitioner's proposed endeavor will create these jobs, what types of jobs will be created, or where they will be located. Furthermore, the record does not establish that the Petitioner will be creating jobs in areas that are economically depressed as he states. The company will be headquartered in [REDACTED] Florida and intends to first serve California, and eventually Illinois, New York, Pennsylvania, Texas, Utah, Oklahoma, and Tennessee. However, the record does not specify where his company will operate in these various states to establish a substantial positive economic effect to an economically depressed area.

Finally, the Petitioner asserts on appeal that his proposed endeavor is of national importance because of the important role immigrants play in the success of entrepreneurship in the United States; and the economic impact of their contributions. While we acknowledge their collective impact, this does not further a claim that the Petitioner's specific proposed endeavor will have a broader impact to his field. The record also contains an expert opinion letter, however when discussing the national importance of the Petitioner's proposed endeavor, the author focuses on the Petitioner's experience and his knowledge of Brazil's economy. He discusses the importance of U.S. companies doing business with and investing in Latin America; which does not align with the record and the Petitioner's stated proposed endeavor. Therefore, this letter does not further the Petitioner's assertion of the national importance of his proposed endeavor.

Dhanasar states that an undertaking may have national importance because it has national or even global implications within a particular field. *Dhanasar*, 26 I&N Dec. at 889. The record does not establish the Petitioner's proposed endeavor would have national or even global implications within its field. The Petitioner states in his definitive statement that in its first three years, he will impact the lives of 3600 people. He states he will influence global standards and encourage other nations to adopt similar initiatives. While we note his intentions and his proposed endeavor have merit, the Petitioner's statements alone are not enough to establish the national importance of his proposed endeavor. As stated above, a petitioner must support assertions with relevant, probative, and credible evidence. *See Chawathe*, 25 I&N Dec. at 376. In *Dhanasar*, we determined that the Petitioner's teaching activities did not rise to the level of having national importance because they would not impact his field more broadly. *Dhanasar*, 26 I&N Dec. at 893. Here too, his company may impact his direct clients, however that does not constitute national importance as set forth in the *Dhanasar* framework. Without additional supporting evidence of his proposed endeavor's broader prospective impact, we conclude the impact would be limited to the Petitioner's company and its clients and therefore does not rise to the level of national importance.

While we do not discuss each piece of evidence individually, we have reviewed and considered the record in its entirety. As the Petitioner's proposed work does not meet the first prong of the *Dhanasar* framework, the Petitioner has not demonstrated eligibility for a national interest waiver. Because the Petitioner is ineligible for a national interest waiver, we need not reach, and therefore reserve, the remaining prongs of the *Dhanasar* framework. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

The Petitioner has not met the requisite first prong of the *Dhanasar* analytical framework. We therefore conclude that the Petitioner has not established by a preponderance of the evidence that he is eligible for or otherwise merits a national interest waiver as a matter of discretion.

ORDER: The appeal is dismissed.